

requirements for a complaint and conceding that dismissal is appropriate. This action is **DISMISSED**. The clerk is instructed to prepare a separate Order of Dismissal. No appearance is necessary on today's calendar.

DURBIN, SR, ET AL. VS. MOHAMMADI, ET AL.

CASE NUMBER: 25CV-0208902

On April 16, 2026, the Court issued the following Order and provided notice to all parties. The Order is reproduced here as a courtesy, in the event notice was not received prior to today's hearing: "The Court is in receipt of a Notice of Appeal filed by Plaintiff on April 1, 2026. The appeal is from the Court's March 10, 2026 Order granting in part Defendant's Special Motion to Strike, pursuant to Code of Civil Procedure sections 425.16(i) and 904.1(a)(13). The perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby. CCP § 916. The Court's Order granting the Motion struck five causes of action, leaving only one cause of action at issue. Therefore, the Court finds good cause to stay the entire matter pending resolution of the appeal. All other motions currently set for hearing in this matter will be reset as necessary once the stay of this matter is lifted. All future hearing, settlement conference, and trial dates are **VACATED**. This matter is set for review regarding status of appeal on **Monday, July 20, 2026, at 9:00 a.m. in Department 64.**"

IN RE: FRANATTI

CASE NUMBER: 26CV-0209765

Tentative Ruling on Petition for Change of Name: Petitioner Robert Phillip Batti seeks to change his name to Robert Phillip Franatti. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

GUERRA VS. KNAUF INSULATION, INC.

CASE NUMBER: 24CV-0206404

This matter is on calendar for hearing on Defendant's Motion for Summary Judgment. On April 14, 2026, Defendant filed a Notice of Settlement and Request to Vacate all Hearings and Deadlines and Set Approval Hearing. The Notice is signed by counsel for Plaintiff and Defendant. No proposed order was submitted. No Notice of Settlement (CM-200) was filed. However, in light of the jointly filed Notice, today's hearing on the Motion for Summary Judgment is dropped from calendar. No appearances are necessary at 8:30 a.m. This matter is also on calendar at 9:00 a.m. today for a status conference. The 9:00 a.m. status conference is confirmed.

IN RE: HARDY

CASE NUMBER: 26CV-0209761

Tentative Ruling on Petition for Change of Name: Petitioner Brandy Hardy seeks to change the last name of her minor daughter. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. No proof of publication has been provided.

Additionally, the Petition fails to include the father's address, as required at Item 7e. When a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). In the alternative to personal service, the Court may order notice be given in another manner the Court determines is reasonably calculated to give

actual notice to the nonconsenting parent. CCP § 1277(a)(4). No proof of service is on file. The Court notes that Petitioner filed a “Proof of No Service.” This is insufficient; it appears only two attempts at personal service were made at the father’s likely current address. This matter is continued to **Monday, June 1, 2026, at 8:30 a.m. in Department 64**. Petitioner shall file an Amended Petition, which includes the father’s current address, and an Amended Order to Show Cause (“Amended OSC”) for the continued hearing date. The Amended OSC must be personally served on the nonconsenting parent at least 30 days before the continued hearing date. Proof of service must be filed with the court. No appearance is necessary on today’s calendar.

MOEBES VS. LAMONT, ET AL.

CASE NUMBER: 25CV-0208787

Tentative Ruling on Motion to Compel Discovery Responses: Plaintiff Shirley Moebes seeks an order compelling Defendant Jay Lamont to respond to Form Interrogatories, Special Interrogatories, and Requests for Production, and that Requests for Admission, be deemed admitted by Defendant. Plaintiff also requests monetary sanctions. Defendant opposes the motion on the grounds that it is mooted by the service of verified responses on March 5, 2026.

A party has thirty days after service to respond to a Request for Production, Request for Admissions, Form Interrogatories, or Special Interrogatories. CCP §§ 2031.260(a), 2033.250(a), and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a), 2033.280(a), and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c). For Request for Admissions, the party can move for an Order that the Request for Admissions be deemed admitted. CCP § 2033.280(b). The Declaration of Brian Michael Pratt establishes that Plaintiff attempted to resolve the matter informally prior to filing this motion.

Here, Plaintiff has provided evidence that Plaintiff propounded: Form Interrogatories, Set One, Special Interrogatories, Set One, Request for Production, Set One, and Requests for Admission, Set One to Defendant Jay Lamont by mail on October 22, 2025. Plaintiff propounded Requests for Production, Set Two on October 31, 2025. Defendant served unverified, objection-only responses to the discovery on December 16, 2025 – past the deadline for all sets. Additionally, the responses were unverified. “Unsworn responses are tantamount to no responses at all. (*Zorro Inv. Co. v. Great Pacific Securities Corp.* (1977) 69 Cal.App.3d 907, 914.)” *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.

Defendant served verified substantive responses on March 5, 2026. While providing verified responses renders the motion to compel moot, sanctions are still available per CRC 3.1348(a). Defendant did not provide justification for the delay. The Court does not find substantial justification or that other circumstances make the imposition of a monetary sanction unjust. Plaintiff seeks sanctions of \$1,250.00 comprise of 5 attorney hours at a rate of \$250.00 per hour. The Court finds both to be reasonable and awards sanctions to Plaintiff in the amount of \$1,250.00.

The Motion to Compel Responses is moot. The request for sanctions is **GRANTED** in the amount of \$1,250.00. Objections are waived. Plaintiff’s proposed order will be modified and executed.